

Form No: HCJD/C-121

ORDER SHEET
LAHORE HIGH COURT,
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

S.T.R.No.05 2025

M/s Ali Sher Traders V/S Commissioner Inland Revenue etc.

<i>S.No.of order / Proceedings</i>	<i>Date of order /Proceedings</i>	<i>Order with signatures of Judge, and that of parties or counsel, where necessary.</i>
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03.06.2025	Mr. Zahid Shafiq, Advocate for the applicant. Malik Itaat Hussain Awan, Advocate for the Respondents Yousaf Khan, S.O. IR (Hqrs), RTO, Rawalpindi.
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C.M.No.01 of 2025

This application seeks condonation of delay in filing reference application.

2. The learned counsel for the Respondents by means of a preliminary objection, questioned the maintainability of this reference application on the ground of limitation.
3. Learned counsel for the applicant argues that the impugned order dated 14.02.2025 was served on the representative of the applicant on 24.02.2025 but the same was handed over to the applicant on 11.03.2025 thus period of limitation starts from the communication of order on 11.03.2025 instead of 24.02.2025.
4. When confronted former to first cross the hurdle of limitation in the light of law laid down by Hon’ble Supreme Court of Pakistan in “ASAD ALI and 9 others versus THE BANK OF PUNJAB and others” (PLD 2020 SC 736), he could not give any substantial reasons

rather stated that reference application is within time as the applicant was provided the copy of the impugned order on 11.03.2025 by his authorized representative.

5. Heard. Record perused.

6. We are cognizant of the fact that the period of limitation for filing the reference application under Section 47 of the Sales Tax Act, 1990 (the “*Act*”) is thirty (30) from the communication of the order of the Appellate Tribunal or the Commissioner (Appeals), as the case may be. Record is indicative of the fact that the impugned order was passed on 14.02.2025 and the instant reference application was to be filed within thirty days but the same was filed on **03.04.2025** with a delay of as many as 16 days. The ground urged by the applicant through this application is vague and unpersuasive as the applicant has merely annexed an affidavit executed by his authorized representative, who personally received the impugned order dated **14.02.2025** on **24.02.2025**. It is further noted that the said order was subsequently provided to the applicant on **11.03.2025**, pursuant to his contact and request. This sequence of events clearly establishes that the passing of the impugned order dated **14.02.2025** was within the knowledge of the applicant. It is pertinent to observe that the authorized representative of the applicant, being a registered tax practitioner, was well aware of the statutory period of limitation for filing a tax reference under Section 47 of the “*Act*” which prescribes a specific time frame for instituting reference application but despite receiving the impugned order on 24.02.2025, he could provide the same to the applicant himself on or before the expiry of limitation i.e. 14.03.2024, but instead of handing over the same, he

keep it with him for almost sixteen days, without any solid explanation or reason. The law of limitation provides an element of certainty in the conduct of human affair. Statutes of limitation and prescription are, thus, statutes of peace and repose. In order to avoid the difficulty and errors that necessarily result from lapse of time, the presumption of coincidence of fact and right is rightly accepted as final after a certain number of years. Whoever wishes to dispute this presumption must do so, within that period; otherwise his rights, if any, will be forfeited as a penalty for his neglect. In other words the law of limitation is a law which is designed to impose quietus on legal dissensions and conflicts. It requires that persons must come to Court and take recourse to legal remedies with due diligence. The question of limitation cannot be termed as mere technicality. It has paramount importance, as with the afflux of time certain rights do accrue in favour of the adversary which cannot be taken away in a slipshod manner. The object for framing the law for the purpose of regulating the limitation was to push the parties to file their respective claims within the stipulated period. The time period provided for filing the proceedings in terms of suit, appeal, review, revision petition or any application cannot be lightly ignored or brushed aside. The question of limitation is as important as jurisdiction of the Court. It is a settled position of law that in case of time barred proceedings, defaulting party must explain the delay of each day caused in preferring valid proceedings in accordance with law. As no sufficient cause is pleaded even in the instant application, so the applicant deserves no leniency. Learned counsel for the applicant has not been able to extend any cogent reason

to be believed for condonation of delay, therefore, the delay of about sixteen (16) days cannot be condoned mere on the application of the applicant. The law helps the vigilant and not the indolent. Reliance is placed on “STATE BANK OF PAKISTAN through Governor and another Versus IMTIAZ ALI KHAN and others” (2012 SCMR 280), “LAHORE DEVELOPMENT AUTHORITY Versus Mst. SHARIFAN BIBI and another” (PLD 2010 Supreme Court 705), “REHMAT DIN and others Versus Mirza NASIR ABBAS and others” (2007 SCMR 1560), “MUHAMMAD NAWAZ and others Versus THE STATE” (2004 SCMR 945), “NAZAKAT ALI Versus WAPDA through Manager and others” (2004 SCMR 145) and “AFTAB IQBAL KHAN KHICHI and another Versus Messrs UNITED DISTRIBUTORS PAKISTAN LTD. KARACHI” (1999 SCMR 1326).

7. In view of above, this application is dismissed.

Main Case.

8. Since the application for condition of delay has been dismissed therefore, this reference application is also dismissed being barred by time.

9. Office shall send a copy of this order under seal of the Court to the Commissioner Inland Revenue (Appeals-III), Islamabad as per Section 47(5) of the “Act”.

(SARDAR AKBAR ALI)
JUDGE

(JAWAD HASSAN)
JUDGE